

1.

CASE #	CASE NAME	HEARING NAME
CVPS2404533	COLTON VS WYNDHAM DESTINATIONS, INC.	MOTION TO COMPEL INITIAL RESPONSES OF PLAINTIFF TO REQUESTS FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS PURSUANT TO CCP SEC. 2030.290(C) AGAINST PLAINTIFF KRISTINE COLTON BY WORLDMARK, THE CLUB

Tentative Ruling: No tentative ruling. Hearing is continued to consolidate all future hearings. The Motions to Compel currently set for 8.26.26, 9.01.26, 9.03.26, 9.09.26 and 9.11.26 are all continued to 9.22.26 at 8:30 a.m. Any oppositions to the motions shall be filed by 9.09.26. Any reply to be filed by 9.15.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503181	CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO VS DESERT REGIONAL MEDICAL CENTER	MOTION TO SET ASIDE DEFAULT FOR FAILURE TO TIMELY RESPOND TO REQUEST FOR ADMISSIONS ON 2ND AMENDED COMPLAINT OF FRANCISCO CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO BY DESERT REGIONAL MEDICAL CENTER

Tentative Ruling: No tentative ruling. Hearing continued to 9.16.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504070	LIBERTAD VS COUNTY OF RIVERSIDE	DEMURRER ON 2ND AMENDED COMPLAINT OF URIMARE LIBERTAD

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained only where the defendant cannot reasonably determine what issues must be